

AMENDED COMPLAINT OF ORIGINAL

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

WAYNE SINGLETON

349-15-07433

(In the space above enter the full name(s) of the plaintiff(s).)

DEMAND:

\$500 MILLION
DOLLARS

COMPLAINT

-against-

under the

Civil Rights Act, 42 U.S.C. § 1983
(Prisoner Complaint)NEW YORK POLICE DEPARTMENT 5TH PRECINCT
OFFICERS CHESTER CHUNG, "JOHN DOE", "JOHN DOE",
"JOHN DOE" AND SERGEANT BOUILLON BERT,
NY CATS STAFF MARGIE VICTOR, MANHATTAN DETENTION
COMPLEX WARDEN, COMPLAINANTS "JANE DOE", "JANE DOE",
AND "JANE DOE", NEW YORK CITY DISTRICT ATTORNEY
CHRIS VANCE, JR., ADA GINA MIGNOLA, ADA CALEB
KRUCKENBERG, TUPIT OF PREE, CORRECTION CAPTAIN
CAMERON (#260), CORRECTION CAPTAIN CAMACHO, CORRECTION
CAPTAIN MR. REIZ (#860), KILUVA MOODY, MD, WARDEN OF OBCC, C.O. "JOHN DOE",
C.O. "JOHN DOE", C.O. "JOHN DOE",
C.O. "JOHN DOE", C.O. "JOHN DOE",
C.O. "JOHN DOE", C.O. "JOHN DOE"Jury Trial: ☒ Yes ☐ No

(check one)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff

Name

ID #

Current Institution

Address

WAYNE SINGLETON

349-15-07433

GEORGE MOTCHAN DETENTION CENTER

C-73 15-15 HAZEN ST.
EAST ELMHURST, NY 11370

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

* FIRST AMENDED PAGE

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AMENDED COMPLAINT - ORIGINAL

Defendant No. 1

Name NYPD POLICE OFFICER CHESTER CHUNG Shield # 997
Where Currently Employed 5TH PRECINCT
Address 19 Elizabeth St. * Squad: AC
NEW YORK, NY * Tax # 9488

Defendant No. 2

Name NYPD POLICE OFFICER "JOHN DOE" Shield # N/A
Where Currently Employed 5TH Precinct
Address 19 Elizabeth St.
NY, NY

Defendant No. 3

Name NYPD POLICE OFFICER "JOHN DOE" Shield # N/A
Where Currently Employed 5TH PRECINCT
Address 19 Elizabeth St.
NY, NY

Defendant No. 4

Name NYPD POLICE OFFICER "JOHN DOE" Shield # N/A
Where Currently Employed 5th Precinct
Address 19 Elizabeth St.
NY, NY

Defendant No. 5

Name NYPD POLICE SERGEANT BOVILLON ^{GERAR} Shield # N/A
Where Currently Employed 5TH Precinct
Address 19 Elizabeth St.
NY, NY

Defendant No. 6 Name Margie Victor Shield # N/A
Where Currently Employed NY CATB
Address 598 Broadway, 2nd floor NY, NY 10012

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?

(1) NY CATB drug program building, 598 Broadway, NY, NY
(2) C-95 (D.A. Vance) 10012

B. Where in the institution did the events giving rise to your claim(s) occur?

(1) In the building stairwell.
(2) C-95, while in my housing area.

C. What date and approximate time did the events giving rise to your claim(s) occur?

(1) June 30, 2015, 15:43
(2) Sometime in the day, in August, 2012.

Defendant No. 7

Name MDC Warden
Where Currently Employed Manhattan Detention Complex
Address 125 White St. NY, NY 10013

Rev. 05/2007

* 2ND AMENDED PAGE.

Defendant No. 8

Name Complainant "Jane Doe"
Where Currently Employed Do not Know
Address Do not Know

Defendant No. 9

Name Complainant "Jane Doe"
Where Currently Employed Do not Know
Address Do not Know

Defendant No. 10

Name Complainant "John Doe"
Where Currently Employed Do not Know
Address Do not Know

Defendant No. 11

Name District Attorney Cyrus Vance, Jr.
Where Currently Employed Do not Know (D.A.'s Office)
Address 1 Hogan Place N.Y., N.Y. 10013

Defendant No. 12

Name Assistant District Attorney Gina Mignola
Where Currently Employed District Attorney's Office
Address 1 Hogan Place N.Y., N.Y. 10013

Defendant No. 13

Name Assistant District Attorney Caleb Kruckenberg
Where Currently Employed District Attorney's Office
Address 1 Hogan Place N.Y., N.Y. 10013

Defendant No. 14

Name Typist of Brief ("John or Jane Doe")
Where Currently Employed District Attorney's Office
Address 1 Hogan Place N.Y., N.Y. 10013

Defendant No. 15

Name Correction Captain Cameron (#260)
Where Currently Employed OBCC
Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 16

Name Correction Captain Ms. Reid (#861)
Where Currently Employed OBCC
Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 17

Name Correction Captain Camacho
Where Currently Employed OBCC
Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 18

Name Kiluvia Moody, MD.
Where Currently Employed OBCC
Address 16-00 Hazen St. East Elmhurst, NY 11370

AMENDED COMPLAINT OF ORIGINAL

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Defendant No. 19

Name Warden
 Where Currently Employed OBCC
 Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 20

Name "C.O. "John Doe"
 Where Currently Employed OBCC
 Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 21

Name C.O. "John Doe"
 Where Currently Employed OBCC
 Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 22

Name C.O. "John Doe"
 Where Currently Employed OBCC
 Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 23

Name C.O. "John Doe"
 Where Currently Employed OBCC
 Address 16-00 Hazen St. East Elmhurst, NY 11370

Defendant No. 24

Name C.O. "John Doe"
 Where Currently Employed C-73
 Address 15-15 Hazen St. East Elmhurst, NY 11370

Defendant No. 25

Name C.O. "John Doe"
 Where Currently Employed C-73
 Address 15-15 Hazen St. East Elmhurst, NY 11370

Defendant No. 26

Name C.O. "John Doe"
 Where Currently Employed C-73
 Address 15-15 Hazen St. East Elmhurst, NY 11370

-END OF DEFENDANTS-

* FOURTH AMENDED PAGE

FALSE ACCUSATION ⑤

1. In August, 2012, while I was incarcerated on Rikers Island for a crime that I did not commit (Grand Larceny), I received a D. Facts: legal brief from my lawyer Arthur Hopkirk. The brief was a response from New York City District Attorney Cyrus Vance Jr. in my 2010 appeal pertaining to me getting released under the Rockefeller Drug Law.

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

2. In the brief, District Attorney Vance falsely accused me of sexually assaulting a counselor in an upstate prison, while I was already serving nearly twelve years for drug charges. Vance did not mention the name of the counselor, nor the prison where it allegedly occurred. This alleged incident never happened and there is no proof on my rap sheet and prison records, of me assaulting anyone. Gina Mignola and Caleb Kruckenberg (the Assistant District Attorneys) and the typist ("Tana/John Doe") are also responsible for those false accusations against me and came from my former lawyer Arthur Hopkirk, 199 Water St., NYC, who has copies of that brief. I served twelve years for two bags of "dope" (heroin), too lxxcs 3. ASSAULT, DENIAL OF MEDICAL TREATMENT

On August 22, 2012, when I was incarcerated in C-79, I was physically assaulted by three correction officers ("John Doe", "John Doe", "John Doe") in the intake bullpen because they overheard me talking about the District Attorney's false allegation against me. They thought that I was a rapist and that is the reason why they beat me up (by kicking and punching me in the face, body and back).

Continued on pages 6

III. Injuries:

① If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. This situation made me lose my girlfriend, strong family/friend ties, my job offer for \$17/hr. at 35th Street, made me suffer a lot of emotional/mental distress and injuries such as constant stress, isolated and more, astronomical stress from incident in regards to being falsely accused of having a gun and knife, loss of wages from my job at CEO and "HRA", destruction of my good character (defamation), forcing me to live in unsanitary jail conditions in the 5th precinct, 100 Centre Street Court building and MPC, making me get violated (more time) from parole (PRS).

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

As far as the injuries from the D.A.'s office (Cyrus Vance), I have never stopped hurting A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility? Yes ☒ No ☐ from those false sex accusations on me. People whom I know and am affiliated with (such as family and friends) never treated me the same because they think that I'm a rapist - all because of D.A. Vance.

am unable to keep a steady girlfriend because once I tell her about the D.A.'s false accusation on me, it is hard from my soul to convince her that I didn't do it - because the claim came from such a prominent source in the justice system - a D.A. 3

After the assault, I was denied medical attention as I laid on the cell floor suffering from my injuries, and then the medical staff came to get me by placing me on a stretcher. I was then transferred to the clinic and treated for my injuries which included severely bruised wrists and pain in my head.

4. EMOTIONAL INJURY / MENTAL ANGUISH / SEVERE PSYCHOLOGICAL DISTRESS

On August 26, 2012, while I was on Rikers Island in C-95, I was so emotionally distraught and stressed from being falsely accused of sexual assault by P.A. Vance I had to be admitted to the Bellevue Psychiatric Unit in Manhattan for four days, until August 30, 2012. My clothes and other property had been stolen from me in C-95 as well, and the officers did not help me at all. At that present time, I was already suffering from Bipolar Disorder, and the P.A.'s situation made my status much worse, as I had to be medicated for my distress, I took Risperdal, Benadryl, Depacote and Krazedone medications. My mental pain and suffering was unbearable and cannot be put into words in regards to what the P.A.'s office did to me.

After my stay at Bellevue, I was transferred back to another mental health unit for inmates in C-71 (C-95), on Rikers Island, where I was violated several times by the MHU staff, as they continuously denied me treatment, by walking by my cell. I continued to take "psych meds".

5. ASSAULT, DENIAL OF MENTAL HEALTH TREATMENT, DENIAL OF MEDICAL TREATMENT, DENIAL OF FOOD, HARASSMENT, * DEFAMATION OF CHARACTER

On September 16, 2012, while I was in OBCC intake on Rikers Island, I was denied food from the C.O. while waiting to be housed in a dorm.

When several officers came to escort me to be transferred to a dorm, I explained my mental condition and told them that I could not live in a dorm, but they ignored me

and disrespected me by forcing me to still go to the dorm. I called the warden who was nearby the cell, but was ignored.

One of those officers who transferred me was Correction Captain Cameron (#260), who told me to shut up.
 6. When I went upstairs to the front of the dorm (I believe it was 4 or 8 upper), I explained to Correction Captain Mrs. Reid (#861) that I couldn't live in a dorm because of my current mental health status. I also told her about the false sex accusation by D.A. Vance - and that I didn't want to be a target for other inmates - and basically I just wanted to be housed in a cell where I could try to cope with my problems discreetly.

Captain Reid denied me and told me that if I didn't go in the dorm that she would have her officers assault me. She also forced me to go live in the dorm after I specifically told her that I would kill myself - if she put me in a dorm against my will.

* SPECIAL NOTE TO THE COURT:

Please be advised that from 2012 until 2014, I used to have a lot of documentary evidence in regards to the D.A. Vance case, including medical records from injuries I suffered on 9/16/12 in OBCC and C-73, mental health records from injuries I suffered on 8-22-12 in C-73 and 9/16/12 in OBCC, injury photos, letters from many outside agencies such as President Barack Obama (Dept. of Justice), Governor Cuomo and many more. All of this legal work was lost by Grechound big company when I went home in 12/2014.

She then threatened me saying that she will kill all of the officers and inmates that I was a rapist (in regards to D.A.'s false accusation), since I was not going to the dorm. I then asked to see mental health.

All I was trying to do was get some help and a private cell to go live in.

7. Immediately, after I was forced to go in the dorm by

Captain Reid, I went to the bathroom, tied a sheet to the door ledge and began to hang myself, by tying the sheet to my neck. I was too stressed and I couldn't take it anymore. As I was hanging, several inmates witnessed me and called the officers,

seconds later, approximately four or more officers came to cut me down. One of them was Captain Cameron.

Then I was thrown on the wall head first, as Cameron tied the handcuffs from behind me "extra tight" on my wrists. Then I was brought to the stairwell by all of the officers, out of the view of other inmates and cameras. Captain Cameron and the officers began to sexually assault me all ~~because~~ because of Vance's claim. Captain Cameron began calling me a rapist in regards to the D.A.'s accusation, telling me that Captain Reid told him all about it (the false accusation). I was then assaulted by Cameron and the other three or more officers, as they all began punching me in the face, head, torso and kicking me in the back, head, face and body. They felt my buttocks really hard and continued to sexually assault me. "I.G" came to see me.

8. I was then dragged to intake and thrown in the same cell where I was from 9/14/12 until 9/16/12. I was so hurt, I defecated on myself, because the officers kept beating and kicking me in the stomach.

So, there was blood and feces everywhere, as I was forced to remain in the cell, bleeding and suffering from all of my injuries, as Captain Cameron continued to give me medication and medical treatment. Cameron just kept filming me on the camera, harassing and teasing me.

I was so hurt, I fell flat on the floor. Cameron then left.

Then, Captain Camacho came by and ignored me as well, as I begged for medical attention.

~~Charge from D.A. Vance put my life in danger amongst inmates and~~
~~everyone - everywhere I went to!~~

9. Later, I was brought to the OBCC clinic and saw

Dr. Kiluvia Moody, MD. who did not help me. He refused to write down my injuries from the officers and denied me any further medical treatment.

When I told him about what the officers did to me, he said "I'm not here for that." He was very rude to me.

10. UNSANITARY JAIL CONDITIONS

I was then transferred back to C-71 (C-95) on 9/16/12, and was forced to remain in dirty, disease infested cells for several days before being housed on 9/18/12, and still denied medical/psychiatric treatment by the officers.

I was sent to C-95, housing area 16 upper.

11. Then, on 9/26/12 or 9/27/12, I was finally treated for my injuries by Dr. Goldbourne in C-95. C.O. Snagg referred me to medical upon my request.

Several pictures were taken of me by Captains and officers. In October, 2012, I was sent upstate. In the midst of me going upstate and doing three years for a Grand Larceny, I did not commit, many drastic things happened to me, such as

me being framed with "box time" by Correction Officer Ms. Tremper from Shawangunk prison in 2012, having my hand broken and being brutally assaulted by C.O.'s and more. See "Singleton v. Tremper," N.Y. Court of Claims.

12. FALSE ARREST

* (Injuries suffered as a result of false arrest).

On June 30, 2015, I was on Broadway and Houston Street, in Manhattan, minding my own business, talking and telling jokes to people who I know from my NYCATS drug program at 598 Broadway. Three females walked by me and told me that they didn't like what I was saying, harassing me. I tried to diffuse any situation, so I walked away and attended my 2PM-3PM program. Sometime after 3:00 PM, I went to the stairway of 598 Broadway to sit down for a few minutes and clear my head, when I was wrongfully arrested by Police Officer Chester Chung and almost four more officers, as they pulled out their guns on me, striking instant fear in me.

13. When I was arrested, I did not have any weapon on me, nor did I have anything illegal on me at all. The three women identified me in front of 598 Broadway, as the officers put me in the police car and drove me to the 5th Precinct in Manhattan.

I was wrongfully arrested, and even though I understand that I can't bring a 1983 civil claim for my main case, this claim is sought to only address the situations I've endured in jail/prison as a result of being falsely arrested. Police officer Chung and the other officers did not even read me my Miranda rights when they falsely arrested me. 14. From ^{6:30} July 1, 2015 until 7/2/15, I was forced to remain in dirty, disease infested cells, with feces and urine stuffed in toilets, with no bedding, toothpaste, toilet paper, blanket, sheet, no shower, while the warden ignored me.

15. On July 6, 2015, I was wrongfully indicted by a Grand Jury who focused more on my past than the present charge. The Grand Jury even laughed at me!

DENIAL OF VISIT, LAW LIBRARY AND SICK CALL
16. On 7/10/15, my visit was denied in Manhattan Detention Complex, causing me and my family severe mental distress, then on Saturday, July 11, 2015, my mother came to visit me again, and was refused to receive a property receipt which I left for her to obtain. Also, on 7/10/15 and on 7/16/15 (when the jail was locked down for no reason), I missed law library and sick call. The machine was broken because she told me that she left me money, but it never showed up in my account.

Why was Manhattan Detention Complex on "locked down" on 7/10/15 and 7/16/15? All of these violations included in this complaint have caused me the most horrific pain and suffering I've ever endured in my life.

I was doing well on parole, staying clean and sober, working at CEO, just received my OSHA- and just doing my absolute best to be a better man. So why was I framed?

{ - End -
of
Statement -
FACTS }

P.S. - From JULY, 2012 until now (7/2015), I've been exposed to dangerous second-hand smoke from inmates in dorms. I am an asthmatic and it made me even more sick.

NYCATS Staff lied on me (Margie Victor) claiming that I threatened them. I never threatened NYCATS or anyone. NYCATS is a corrupt drug program known to frame their clients with "dirty-urines."

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

① Manhattan Detention Complex. ② Riker's Island, 2012.
This incident happened at 598 Broadway, prior to my
incarceration in 2015.

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ☒ No ☐ Do Not Know ☐

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ☒ No ☐ Do Not Know ☐

If YES, which claim(s)? All.

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ☒ No ☐

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ☐ No ☐ - N/A

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

① On Rikers Island, 2012.
② In my housing area (4 North), 2015.

1. Which claim(s) in this complaint did you grieve? False Arrest, Wrongful

Imprisonment, Unsanitary Jail Conditions, Defamation of Character,
Cruel and Unusual Punishment, Fraud, FALSE ACCUSATION.

2. What was the result, if any?

None yet.

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process.

N/A.

I never even received a response and I wrote
many grievances.

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here:

N/A

2. If you did not file a grievance but informed any officials of your claim, state who you informed,

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AMENDED COMPLAINT OF J. G. VANCE

informed, when and how, and their response, if any: N/A

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies.

YES. I submitted TONS of grievances and called "I.G." in NYC so many times. *"I.G." came to interview me. This drastic, vicious lie about me sexually assaulting someone by D.A. Vance has not only defamed my name ("character assassination") for the rest of my life, but it also has and continues to put me and my families lives in danger - that is to be HURT or even KILLED!

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). (8TH AMENDMENT VIOLATION) AGAINST N.Y. STATE AND NYC

- ① COMPENSATORY DAMAGES IN THE AMOUNT OF \$100 MILLION DOLLARS FOR SERIOUS PHYSICAL AND MENTAL PAIN AND SUFFERING I ENDURED AS A RESULT OF THE FALSE ACCUSATION (LIBEL) OF A SEX CRIME BY D.A. VANCE.
- ② INJUNCTIVE RELIEF SOUGHT AGAINST DISTRICT ATTORNEY CYRUS VANCE, JR. REQUESTING THAT HE CORRECT HIS WRITTEN STATEMENT OF ME COMMITTING A SEX CRIME ON MY BRIEF HE SENT TO MY ATTORNEY ARTHUR HOPKIRK, IN 2012.
- ③ COMPENSATORY AND PUNITIVE DAMAGES IN THE AMOUNT OF \$200 MILLION DOLLARS AGAINST CAPTAIN CAMERON, CAPTAIN REID, CAPTAIN CAMACHO, DR. KILLIAN, MD, CORRECTION OFFICERS "JOHN DOE", "JOHN DOE", "JOHN DOE", "JOHN DOE" AND THE WARDEN OF DOCC FOR SEVERE PHYSICAL ASSAULT, SEXUAL ASSAULT, DENIAL OF MEDICAL AND MENTAL HEALTH TREATMENT, HARASSMENT, EMOTIONAL INJURY ON ME AND MY FAMILY, SERIOUS INJURIES, AS A RESULT OF D.A. VANCE'S FALSE CLAIM ON ME. (8TH AMENDMENT)
- ④ COMPENSATORY DAMAGES AGAINST OFFICERS "JOHN DOE", "JOHN DOE" AND "JOHN DOE" IN THE AMOUNT OF \$100 MILLION, FOR PHYSICAL ASSAULT AND DENIAL OF MEDICAL TREATMENT IN C-73, BECAUSE OF D.A. VANCE'S FALSE SEX CLAIM ON ME. (8TH AM)
- ⑤ COMPENSATORY DAMAGES IN THE AMOUNT OF \$100 MILLION DOLLARS AGAINST POLICE OFFICERS CHUNG, (3) "JOHN DOE'S" SERGEANT BERT, MARGIE VICTOR AND (3)

*

AMENDED PAGE

COMPLAINANTS ("JOHN DOE'S"), FOR LYING ON ME AND PROVIDING FALSE ACCUSATIONS (LIBEL AND SLANDER), DEFAMATION OF CHARACTER, WHICH LED ME TO SUFFER SEVERE INSTANTANEOUS SILENCES, DENIALS OF MY VISIT, LAW LIBRARY, SICK CALL AND EXPOSING ME TO SECOND HAND SMOKE. (8TH AMENDMENT VIOLATIONS).

(13)

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff Dwayne Singleton

Defendants Correction Officers Curtis Ray (#6519), Francisco Canizares (#5146), Ishmael Perez (#7282)

2. Court (if federal court, name the district; if state court, name the county) U.S. District Court

3. Docket or Index number #98-CV-2597

4. Name of Judge assigned to your case Gleeson, John

5. Approximate date of filing lawsuit 1998

6. Is the case still pending? Yes ☐ No ☒

If NO, give the approximate date of disposition 1999

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) Judgment in my favor.

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes ☒ No ☐

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff Dwayne Singleton

Defendants Correction Officers Leonard Robinson, Martin Mason, Deishay Smallwood, Timothy Mester, Richard Lopez, Robert Greene

2. Court (if federal court, name the district; if state court, name the county) U.S. District Court

3. Docket or Index number 01-CV-4050

4. Name of Judge assigned to your case John Gleeson

5. Approximate date of filing lawsuit 2001

6. Is the case still pending? Yes ☐ No ☒

If NO, give the approximate date of disposition 2003

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) Judgment in my favor.

Additional
Lawsuits

Please understand that I lost all of my legal work in 2014, so all I can provide for the Court is:

"SINGLETON V. MARIE GEORGES"

Rev. 05/2010

ETC.

"SINGLETON V. CARON" (USDC/NDNY)

"SINGLETON V. PICCOLOMO (USDC/SDNY)

6 "SINGLETON V. JANE DOE" (USDC/SDNY)

"SINGLETON V. TREMPER" (Court of Claims 2017)

AMENDED

United States District Court
Southern District of New York

(14)

COMPLAINT OF ORIGINAL

PRISONER AUTHORIZATION

Mailed to Plaintiff by the Court on this date:

7/29/2015

RE:

Dwayne Singleton

- v -

NEW YORK CITY POLICE DEPARTMENT

(Enter the full name of the plaintiff(s).)

(Enter the full name of the defendant(s).)

NOTICE IS HEREBY GIVEN THAT THIS ACTION WILL BE DISMISSED UNLESS PLAINTIFF COMPLETES AND RETURNS THIS AUTHORIZATION FORM TO THIS COURT WITHIN FORTY-FIVE (45) DAYS FROM THE DATE OF THIS NOTICE.

The Prison Litigation Reform Act ("PLRA" or "Act") amends the *in forma pauperis* statute (28 U.S.C. § 1915) and applies to your case. Under the PLRA, you are required to pay the full filing fee when bringing a civil action if you are currently incarcerated or detained in any facility. If you do not have sufficient funds in your prison account at the time your action is filed, the Court must assess and collect payments until the entire filing fee of \$350 has been paid, no matter what the outcome of the action.

SIGN AND DATE THE FOLLOWING AUTHORIZATION:

I, Dwayne Singleton (print or type your name), request and authorize the agency holding me in custody to send to the Clerk of the United States District Court for the Southern District of New York, a certified copy of my prison account statement for the past six months. I further request and authorize the agency holding me in custody to calculate the amounts specified by 28 U.S.C. § 1915(b), to deduct those amounts from my prison trust fund account (or institutional equivalent), and to disburse those amounts to the United States District Court for the Southern District of New York. This authorization shall apply to any agency into whose custody I may be transferred.

I UNDERSTAND THAT BY SIGNING AND RETURNING THIS NOTICE TO THE COURT, THE ENTIRE COURT FILING FEE OF \$350 WILL BE PAID IN INSTALLMENTS BY AUTOMATIC DEDUCTIONS FROM MY PRISON TRUST FUND ACCOUNT EVEN IF MY CASE IS DISMISSED.

7/29/15, 2015
Date Signed

Dwayne Singleton
Signature of Plaintiff

N.Y.S.I.D. # _____

Local Jail/Facility I.D. # 349-15-07433

Federal Bureau of Prisons I.D. # _____

*Fifth Amended Page

(15)

AMENDED COMPLAINT OF ORIGINAL

What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 29th day of July, 2015.

Signature of Plaintiff

Dwayne Singleton

Inmate Number

349-15-07344

Institution Address

GMDC C-73

15-15 Hazen St.

East Elmhurst, NY

11370

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 29th day of July, 2015 I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Dwayne Singleton

6TH AMENDED PAGE

* AMENDED COMPLAINT OF ORIGINAL

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

DWAYNE SINGLETON

(In the space above enter the full name(s) of the plaintiff(s)/petitioner(s).)

Civ. () ()

-against-

REQUEST TO PROCEED
IN FORMA PAUPERIS

NEW YORK CITY POLICE DEPARTMENT 5TH PRECINCT OFFICERS,
CHUNG, "JOHN DOE", "JOHN DOE", "JOHN DOE", SERGEANT GODILLON BERTA,
MARGIE VICTOR, MANHATTAN DETENTION COMPLEX WARDEN, COMPLAINANTS "JANE DOE",
"JANE DOE", "JANE DOE", NEW YORK CITY DISTRICT ATTORNEY CYRUS VANCE, JR.,
(In the space above enter the full name(s) of the defendant(s)/respondent(s).)

ANA GINA MIGNOLA, ADA CALEB KRUCKENBERG, TYPIST OF GRIET,
CORRECTION CAPTAIN CAMERON #260, CAPTAIN CAMARHO, CAPTAIN REID (#861), KILUVIA
MOODY, MD, WARDEN OF OBCC, C.O. "JOHN DOE", "JOHN DOE", "JOHN DOE", "JOHN DOE",
I, DWAYNE SINGLETON, (print or type your name) am the plaintiff/petitioner in the
above entitled case and I hereby request to proceed in forma pauperis and without being required to prepay
fees or costs or give security. I state that because of my poverty I am unable to pay the costs of said
proceeding or to give security therefor, and that I believe I am entitled to redress. "JOHN DOE",
"JOHN DOE",
"JOHN DOE"

1. If you are presently employed:
- give the name and address of your employer
 - state the amount of your earnings per month

No.

2. If you are NOT PRESENTLY EMPLOYED:
- state the date of start and termination of your last employment
 - state your earnings per month

YOU MUST ANSWER THIS QUESTION EVEN IF YOU ARE INCARCERATED.

2015 (Approximately 4-2015)

\$ 8.75/HR Part Time *

3. Have you received, within the past twelve months, any money from any source? If so, name the source and the amount of money you received.

a) Are you receiving any public benefits? ☒ No. ☐ Yes, \$ _____

b) Do you receive any income from any other source? ☒ No. ☐ Yes, \$ _____

* SEVENTH AMENDED PAGE

AMENDED COMPLAINT BY ORIGINAL

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4. Do you have any money, including any money in a checking or savings account? If so, how much?

☒ No. ☐ Yes, \$ _____

5. Do you own any apartment, house, or building, stock, bonds, notes, automobiles or other property? If the answer is yes, describe the property and state its approximate value.

☒ No. ☐ Yes, \$ _____

6. Do you pay for rent or for a mortgage? If so, how much each month?

☒ No. ☐ Yes, _____

7. List the person(s) that you pay money to support and the amount you pay each month.

None.

8. State any special financial circumstances which the Court should consider.

None.

I understand that the Court shall dismiss this case if I give a false answer to any questions in this declaration.

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 29th day of July, 2015
date month year

Dwayne Singleton
Signature

8TH AMENDED PAGE